

		The motion is granted as to the prayer for monetary damages on cause of action number two. (<i>Civ. Proc. Code</i> § 436.) Defendants also request the court strike the prayer for punitive damages. Punitive damages are only available if a plaintiff pleads sufficient facts under one of the three prongs of <i>Civ. Code</i> § 3294. The only prong Plaintiffs attempted to allege is the fraud prong. (FAC ¶¶ 7, 16, 22, 31, Prayer No. 2.) "Fraud must be pleaded with specificity rather than with " 'general and conclusory allegations.' " [Citation.] The specificity requirement means a plaintiff must allege facts showing how, when, where, to whom, and by what means the representations were made. . . [Citation.]" (<i>West v. JPMorgan Chase Bank, N.A.</i> (2013) 214 Cal. App. 4th 780, 793.) While Plaintiffs might allege facts which support extortion Plaintiffs' do not allege sufficient facts which support fraud in that action. The motion is granted as to punitive damages. (<i>Civ. Proc. Code</i> § 436.) Plaintiffs are given leave to file an amended complaint within 15 days of written notice of the ruling. <i>Defendants to give notice.</i>
9.	Trujillo v, Hyundai Motor America 25-1511691	(Moot)
10.	Baluch Brothers Development LLC v. Pukini 23-1346229	The motion by Ryan Young as individual and in capacity as Trustee of the Young Family Trust and the Young Ryan Trust for an order granting judgment on the pleadings is DENIED. There is no proof of service showing the motion was served on the plaintiffs. <i>Cal. Rules of Court, rule 3.1300(c)</i> requires a proof of service to be filed at least five court days prior to the hearing. Accordingly, the motion is DENIED. <i>Mr. Young is ordered to give notice.</i>
11.	Hasan v. Hasan 24-1408848	Before the Court is a motion to disqualify Plaintiffs' counsel Fred Padres (Padres) filed by defendants Malik Hasan and Seeme Hasan (Defendants). For the reasons set below, the motion is DENIED. Plaintiffs' request for sanctions is also DENIED. Defendants' original request for judicial notice is DENIED as irrelevant and Defendants' request for judicial notice submitted for the first time with the reply is DENIED as untimely. The court has inherent power "to control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every manner pertaining thereto." (<i>Code Civ. Proc.</i> § 128, subd.(a)(5).) This includes the power to disqualify counsel in appropriate cases. (<i>In re Complex</i>

Asbestos Litig. (1991) 232 Cal. App. 3d 572, 585.) Deciding a motion to disqualify requires the court to weigh the following variables, including: 1) the party's right to counsel of choice; 2) the attorney's interest in representing a client; 3) the financial burden on a client of changing counsel; 4) any tactical abuse underlying a disqualification motion; and 5) the principle that the fair resolution of disputes requires vigorous representation of parties by independent counsel. (*Mills Land & Water Co. v. Golden West Refining Co.* (1986) 186 Cal.App.3d 116, 126.) "The paramount concern must be to preserve public trust in the scrupulous administration of justice and the integrity of the bar." (*People ex rel. Dep't of Corps. v. Speedee Oil Change Sys., Inc.* (1999) 20 Cal.4th 1135, 1145-1146.)

An attorney's misuse of inadvertently disclosed privileged or confidential information may warrant disqualification. (See, e.g., *Rico v. Mitsubishi Motors Corp.* (2007) 42 Cal.4th 807, 819-820; *McDermont Will & Emery LLP v. Superior Court* (2017) 10 Cal.App.5th 1083, 1092; *DCH Health Services Corp. v. Waite* (2002) 95 Cal.App.4th 829, 832.) The so-called "State Fund rule" governs an attorney's duties upon receiving materials that appear to be privileged and/or confidential:

When a lawyer who receives materials that obviously appear to be subject to an attorney-client privilege or otherwise clearly appear to be confidential and privileged and where it is reasonably apparent that the materials were provided or made available through inadvertence, the lawyer receiving such materials should refrain from examining the materials any more than is essential to ascertain if the materials are privileged, and shall immediately notify the sender that he or she possesses material that appears to be privileged.

(*State Compensation Ins. Fund v. WPS, Inc.* (1999) 70 Cal.App.4th 644, 656-657 ("State Fund"); see also Cal. Rules Prof. Conduct, rule 4.4 [codifying the *State Fund* rule].) "The *State Fund* rule is an objective standard. In applying the rule, courts must consider whether reasonably competent counsel, knowing the circumstances of the litigation, would have concluded the materials were privileged, how much review was reasonably necessary to draw that conclusion, and when counsel's examination should have ended. [Citation.]" (*Rico v. Mitsubishi Motors, supra*, 42 Cal.4th at p. 818.)

Here, there is insufficient evidence Padres obtained any information that "obviously appear to be subject to an attorney-client privilege or otherwise clearly appear to be confidential and privileged" or that he violated any ethical duties. Defendants merely speculate that Padres obtained work product information, but there is no proof he actually did. What little evidence there is certainly does not warrant disqualification. The motion is therefore **DENIED**.

Plaintiffs seek sanctions pursuant to *Code of Civil Procedure* section 128.7. However, Plaintiff failed to comply with the procedural requirements, including the filing of a separate motion and compliance

		with the 21-day "safe harbor" rule. (<i>Code of Civ. Proc. § 128.7, subd. (c)(1).</i>) Plaintiffs' request for sanctions is therefore DENIED . <i>Counsel for Plaintiffs shall provide notice of this ruling.</i>
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